INDIVIDUAL AND STATE

THE CENTRAL QUESTION OF → GROUNDING A RIGHT: NATURE → THE STRUCTURE OF A → DUTIES, THE INVERSION OF → ACCOUNTABILITY: THREE CHANNELS AND → LIBERAL, IDEALIST AND CONTRACTARIAN

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g2 and all prior artifacts unchanged

00

STAGE 00

THE CENTRAL QUESTION OF THE INDIVIDUAL-STATE RELATION AND ITS VOCABULARY

RIGHTS, DUTIES, ACCOUNTABILITY · WHY A STATE AT ALL · STATE IS NOT GOVERNMENT · ORDER, RIGHTS, GOODS, JUSTICE, ACTION · LEGITIMACY, NOT MERE COERCION · LOCATE ON THE RELATION SPECTRUM

THE RELATION IN THREE IDEAS

- Rights are justified claims, duties are what is owed, and accountability is power that must answer.
- Rights without limits become licence, duties without rights become subordination, and power without answerability becomes domination.
- The clause fixes a normative relation, not an institutional description of any particular constitution.

WHY A STATE, AND ON WHAT TERMS

- Scarcity, disagreement and the risk of harm leave disputes without an impartial umpire.
- The state supplies order and security, rights protection, public goods, justice and welfare, and collective action.
- Legitimacy is a right to rule that subjects have reason to accept; a gang obtains obedience without ever acquiring it.

THE VOCABULARY THAT EARNS THE FIRST MARK

- Individual, society, civil society, government and state are five different things and must not be run together.
- Locate every item on the spectrum from minimal through welfare and socialist to totalitarian and stateless.
- Define the terms first, locate the case second, and adjudicate only at the end.

MECHANISM / VERDICT — Scarcity, disagreement and the risk of harm leave disputes without an impartial umpire, so a state is instituted to supply order and security, rights protection, public goods, justice and welfare, and the collective action no individual can achieve alone.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The individual and the state are related by justification and not by force: a state earns authority when it supplies order, rights protection, public goods, justice and collective action, and it keeps that authority only while it remains limited and answerable.

01

STAGE 01

GROUNDING A RIGHT: NATURE, LAW AND THE CRITICAL MORAL REGISTER

CLAIM, LIBERTY, POWER, IMMUNITY · NATURAL RIGHTS PRIOR TO THE STATE · GOVERNMENT AS FIDUCIARY TRUST · RIGHTS AS CHILDREN OF LAW · MORAL RIGHTS JUDGE UNJUST LAW · BENTHAM REJECTS NATURAL, NOT LEGAL

A right is a justified claim, liberty, power or immunity → Natural ground: prior to the state, limits government → Legal ground: claimant, duty-bearer and remedy → Moral ground: criticism of a valid but unjust law → Verdict: nature grounds, law enforces, morality judges

THREE GROUNDS OF A RIGHT

- Natural (Locke): rights are held in the state of nature — life, liberty and property — before any government exists.
- Legal (Bentham): a right exists only where law names a claimant, a duty-bearer and a remedy.
- Moral: a right is justified by ethical reasoning before, and independently of, enactment.

WHAT EACH GROUND DELIVERS

- Locke makes government a fiduciary trust whose breach forfeits authority and licenses resistance.
- Bentham makes rights the children of law and dismisses natural rights as nonsense upon stilts.
- The moral register alone explains anti-slavery and anti-colonial claims voiced before legal recognition.

PRESUPPOSITIONS, TRAP AND VERDICT

- Presuppositions: intrinsic moral status, institutional enforceability, and justice not exhausted by positive law.
- Trap: Bentham rejects natural rights, not legal rights, and legal validity is never moral legitimacy.
- Verdict: a mature order needs all three registers — nature grounds, law enforces, morality judges.

MECHANISM / VERDICT — Each theory answers the question why is this owed differently: nature confers standing before government exists, positive law confers an enforceable position with a remedy, and morality confers a critical standard against what the law has actually enacted.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The first mark on any rights stem is earned by refusing to treat every urgent interest as a right: a right is a justified claim, liberty, power or immunity, and a controlled answer names its ground as natural, legal or moral before it argues about anything else.

02

STAGE 02

THE STRUCTURE OF A RIGHT AND THE CORRELATIVITY VERDICT

ONLY CLAIM-RIGHTS PAIR STRICTLY · LIBERTY CORRELATES WITH NO-RIGHT · POWER, LIABILITY, IMMUNITY, DISABILITY · WILL AGAINST INTEREST THEORY · COMMON CORE, PLURAL ARTICULATION · CORRELATIVITY IS NOT IDENTITY

INCIDENT	CORRELATIVE	OPPOSITE	WHAT IT ACTUALLY ENTAILS
CLAIM-RIGHT	duty	no-right	a strict duty-partner exists
LIBERTY	no-right	duty	no positive duty to assist me
POWER	liability	disability	I can alter legal relations
IMMUNITY	disability	liability	you cannot alter my status

THE FOUR JURAL INCIDENTS

- Claim-right correlates with duty; only here does a strict duty-partner exist.
- Liberty correlates with no-right and imposes no positive duty to assist the holder.
- Power correlates with liability, and immunity correlates with disability.

WHAT A RIGHT PROTECTS

- Will theory: the right-holder controls another's duty; it fits autonomy but handles children badly.
- Interest theory: the right protects a vital interest; it fits welfare but can underplay agency.
- Most working systems run a mixed account of agency and well-being together.

HOW FAR THE RIGHT TRAVELS

- Universalist: equal worth and protection from cruelty are a common human aspiration.
- Relativist: personhood, authority and obligation are read through particular traditions.
- Verdict: correlativity is conceptual for claim-rights and institutional for the rest, never a logical identity.

MECHANISM / VERDICT — Separating the four incidents shows exactly where a duty-partner is entailed and where it is not, so the correlativity question is settled by analysis of jural positions instead of by slogan.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Correlativity is the mark-bearing device on this clause: claim-rights are necessarily correlative to duties while liberties are not, so the slogan that rights and duties are two sides of one coin is exact for one Hohfeldian incident and merely loose about the rest.

03

STAGE 03

DUTIES, THE INVERSION OF THE USUAL ORDER, AND THE PRIORITY VERDICT

LEGAL DUTY AGAINST MORAL DUTY · PERFORM THE DUTY, EARN THE RIGHT · SELF-RULE BEGINS WITH SELF-RESTRAINT · ARTICLE 51A, 42ND AMENDMENT 1976 · CO-ORIGINALITY WITH A SEQUENCING CAVEAT · NON-JUSTICIABLE, NOT ENFORCEABLE

POSITION	CORE CLAIM	MERIT	RISK
RIGHTS-FIRST	the person is protected against coercion	shields minorities and dissent	atomised entitlement culture
DUTY-FIRST	order and reciprocity come first	revives civic responsibility	paternalism and conformity
BALANCED	rights and duties are mutually sustaining	best fit for a constitutional democracy	requires institutional vigilance

TWO KINDS OF DUTY

- Legal duty rests on law, constitution and statute, and carries a sanction and a remedy.
- Moral duty rests on conscience and ethical reason, enforced by praise, blame and public criticism.
- Law cannot codify the whole of ethical life, so citizenship depends on habits law alone cannot manufacture.

GANDHI'S INVERSION AND THE INDIAN TEXT

- Perform the duty and the right follows; the true source of rights is duty, secured by service and self-restraint.
- Self-rule (swaraj) begins with rule over oneself, so the duties run to conscience and community rather than to the state.
- Article 51A, inserted by the Constitution (Forty-second Amendment) Act, 1976, is non-justiciable exhortation.

THE PRIORITY DEBATE AND ITS VERDICT

- Rights-first shields dissent and minorities but risks an atomised entitlement culture.
- Duty-first revives reciprocity but can postpone the claims of the powerless.
- Verdict: co-originality with a sequencing caveat — foreground duty if the culture requires it, never demote rights.

MECHANISM / VERDICT — Duties convert abstract norms into expectations of conduct, so a claim-right becomes socially effective only when some determinate agent is bound to respect it, protect it or provide for it.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A duty is not the same thing as obedience, and the defensible verdict on the priority question is co-originality with a sequencing caveat: duty may be foregrounded pedagogically in a culture of entitlement without ever demoting rights to conditional grants.

04

STAGE 04

ACCOUNTABILITY: THREE CHANNELS AND THE DIRECTION THE EXAMINER TESTS

PUBLIC POWER MUST ANSWER · POLITICAL, LEGAL, MORAL CHANNELS · RULE OF LAW AND JUDICIAL REVIEW · FIDUCIARY TRUST MADE INSTITUTIONAL · RECIPROCAL, NOT ONE-WAY OBEDIENCE · ELECTIONS ALONE ARE NOT ENOUGH

The state claims coercive authority over persons → Political channel: rulers can be removed → Legal channel: rulers under reviewable law → Moral channel: shareable public reasons → Verdict: reciprocal, never one-way answerability

THREE CHANNELS OF ANSWERABILITY

- Political: elections, opposition, legislature and a free press let citizens remove rulers.
- Legal: rule of law, judicial review, due process and remedy put rulers under the law.
- Moral: public reason and the dignity of the governed require shareable justifications.

WHY THE CHANNELS MATTER TOGETHER

- Together the three channels convert coercive power into authority.
- Remove all three and what remains is domination rather than government.
- Elections alone deliver formal answerability alongside substantive domination.

THE DIRECTION CORRECTION

- A stem may assume citizens answer to the state; rights principally make the state answerable to citizens.
- Concede that rights also generate responsibilities, such as the duty not to defame that accompanies free speech.
- Verdict: reciprocal accountability; keep answering for power apart from the duties that accompany a right.

MECHANISM / VERDICT — Because the state claims coercive authority over persons, every exercise of that authority must be explicable to those bound by it, and the three channels convert power into authority by making removal, review and public justification possible.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Accountability is the institutional cash value of the distinction between authority and force: rights principally make the state answerable to citizens, and only derivatively generate the responsibilities that accompany the exercise of those same rights.

05

STAGE 05

LIBERAL, IDEALIST AND CONTRACTARIAN PICTURES OF THE SAME RELATION

PERSON PRIOR, OR INSTITUTIONS PRIOR · THE STATE-OF-NATURE PREMISE DECIDES · SECURITY, TRUST, GENERAL WILL · HEGEL AND GREEN AGAINST LOCKE · NORMATIVE TEST, NOT HISTORY · STATE FORCED TO BE FREE WITH CONDITIONS

THINKER	STATE OF NATURE	THE BARGAIN	RIGHT TO RESIST
HOBBES	war of all against all	near-total power to one sovereign for security	almost none beyond self-preservation
LOCKE	natural law governs; rights precede government	limited government held as a fiduciary trust	yes, on breach of trust
ROUSSEAU	free but corrupted by inequality	surrender to the general will	self-rule through the general will

THREE STATES OF NATURE, THREE BARGAINS

- Hobbes: war of all against all, near-total transfer for security, resistance confined to self-preservation.
- Locke: a state of nature governed by natural law, limited government as fiduciary trust, resistance on breach.
- Rousseau: freedom corrupted by inequality, surrender to the general will, and self-rule through it.

THREE DIRECTIONS OF EXPLANATION

- Liberal: the person is prior and the state instrumental, with the standing risk of atomism.
- Idealist: family and civil society culminate in the state as ethical life, with Green removing hindrances to self-realisation.
- Marxist as relation-theory: the state is a class instrument and formal rights can mask real unfreedom.

HINGE PROBLEM AND ADEQUACY VERDICT

- Rousseau's forced to be free is defensible only with equality, generality of law and the absence of factions.
- The deal always follows from the diagnosis: change the premise and the state changes with it.
- Contract grounds limits and consent, yet abstracts from real inequality, so human rights need a further ground.

MECHANISM / VERDICT — Contract theory replaces divine right and conquest with a justificatory story addressed to rational persons, so legitimacy is tested by what free and equal contractors could reasonably be expected to accept.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In every contract stem the deal follows from the diagnosis: name the state of nature first as war of all against all, as inconvenient but norm-governed, or as free but corrupted, and Hobbes's sovereign, Locke's trust and Rousseau's general will follow almost automatically.

06

STAGE 06

RADICAL AND SITUATED CRITIQUES AND THE UNCONDITIONAL-RIGHTS CHARGE

JUSTIFY COERCION, DO NOT ASSUME IT · FORMAL RIGHTS CAN MASK DOMINATION · MEANS, EMBEDDEDNESS, CARE · EVER-WIDENING CIRCLES, NOT A PYRAMID · BOUNDED RIGHTS DO NOT ENTAIL ANARCHY · UNCONDITIONAL IS NOT INALIENABLE

CRITIQUE	CHARGE	POSITIVE PROPOSAL	RESIDUAL LIMIT
ANARCHIST	the right to rule is presumptively illegitimate	voluntary cooperation and mutual aid	adjudication, defence and coordination at scale
MARXIST	formal rights coexist with material domination	real capabilities behind formal rights	risk of undervaluing civil liberties
WELFARE	formal liberty is empty without means	positive freedom and a social minimum	dependency, bureaucracy and fiscal limits
COMMUNITARIAN / FEMINIST	the abstract self hides embeddedness and private power	membership, common goods, care and dependence	must still protect dissent and minority rights

ATTACKS ON THE COERCIVE STATE

- Philosophical anarchism treats the state's right to rule as presumptively illegitimate and cooperation as voluntary.
- Its limits are feasibility, impartial adjudication, external defence and large-scale coordination.
- Gandhi's ever-widening circles keep the individual at the centre, each outer ring serving the inner.

ATTACKS ON THE ABSTRACT INDIVIDUAL

- Marxist: equal legal rights can coexist with deep material domination, so formal freedom may mask class power.
- Welfare: formal liberty is empty without means, so a social minimum enlarges effective freedom.
- Communitarian and feminist: the self is socially constituted, and the private sphere hides dependence and power.

THE UNCONDITIONAL-RIGHTS CHARGE

- Distinguish unconditional from inalienable: rights are inalienable yet limitable.
- Internal limits are the equal rights of others, harm constraints, public order and institutional adjudication.
- Verdict: bounded rights do not entail anarchy; only a naive absolutism about rights ever would.

MECHANISM / VERDICT — Each critique isolates one assumption the standard justification makes, that coercion is necessary, that formal liberty suffices, or that the self is pre-social, and then denies precisely that assumption.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The decisive move against the anarchy charge is a distinction between unconditional and inalienable: rights are inalienable yet limitable, so bounded rights carrying internal harm-limits and correlative duties do not entail anarchy, and only a naive absolutism about rights ever would.

07

STAGE 07

POLITICAL OBLIGATION: SIX GROUNDS DRIVEN THROUGH FOUR TESTS

OBEY BECAUSE IT IS LAW · SIX GROUNDS, FOUR TESTS · FAIR PLAY AND THE FREE-RIDER · SERVICE CONCEPTION, PRE-EMPTIVE REASONS · PRINCIPLES, HARD CASES, RIGHTS AS TRUMPS · BEING OBLIGED IS NOT HAVING AN OBLIGATION

GROUND	CORE CLAIM	NAMED ANCHOR	TEST IT FAILS
CONSENT	obligation arises from voluntary undertaking	Locke, Hobbes, Rousseau	generality: tacit consent is not voluntary
FAIR PLAY	accept the benefits, owe a share of the burdens	Hart, Rawls	defeasibility: unavoidable benefits cannot bind
NATURAL DUTY	support just institutions that apply to you	Rawls	particularity: why this state rather than any?
ASSOCIATIVE / GRATITUDE	obligation flows from membership or benefaction	Dworkin; classical duty frameworks	content-independence: survives only conditionally
PHILOSOPHICAL ANARCHISM	no general duty has yet been established	Wolff, Simmons	cannot distinguish the state from a private agency

SIX CANDIDATE GROUNDS

- Consent (Locke, Hobbes, Rousseau) and fair play (Hart, Rawls) derive the duty from what the citizen has done.
- Natural duty of justice (Rawls), associative obligation (Dworkin) and gratitude derive it from what the citizen is in.
- Philosophical anarchism (Wolff, Simmons) denies that any ground has yet established a general duty.

FOUR TESTS AND WHERE EACH GROUND BREAKS

- Generality and particularity: a natural duty binds me to any just state rather than distinctively to my own.
- Content-independence: obedience must follow because the law directs it, not because I independently agree.
- Defeasibility: fair play collapses where the benefits of public order are unavoidable and non-excludable (Nozick).

AUTHORITY, PRINCIPLES AND THE TRAP

- Raz's service conception: authority is legitimate when its directives are pre-emptive reasons that improve conformity.
- Dworkin, Taking Rights Seriously, 1977: principles have weight, hard cases turn on them, and rights are trumps.
- Trap: never give the service conception to Simmons, or philosophical anarchism to Raz.

MECHANISM / VERDICT — Being obliged by fear and having an obligation are different things, so a genuine obligation must direct obedience because the law directs it, which is exactly what the content-independence test measures.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Obedience is never self-evident, and the mark-bearing move is to say which ground the stem assumes and which test that ground fails, because being obliged by a gunman and having an obligation to the state are two entirely different things.

08

STAGE 08

THE LADDER OF REFUSAL AND THE INDIAN CONSTITUTIONAL LIMIT

REFUSAL IS GRADED, NOT BINARY · PUBLIC, NON-VIOLENT, PENALTY-ACCEPTING · THOREAU 1849, SALT SATYAGRAHA 1930 · AMBEDKAR 1949, GRAMMAR OF ANARCHY · ARTICLE 19 PROTECTS PROTEST ONLY · NO RIGHT TO BREAK THE LAW

A defeasible duty makes refusal graded, not binary

Legal dissent within the law → Conscientious objection seeks personal exemption → Civil disobedience: public, non-violent, penalty-accepting

FOUR RUNGS OF REFUSAL

- Legal dissent works within the law through speech, vote, petition and litigation.
- Conscientious objection seeks a personal exemption, may be private, and accepts the penalty.
- Civil disobedience is a public, non-violent, penalty-accepting breach; resistance and revolution go further.

CONDITIONS FOR THE THIRD RUNG

- The law must be seriously unjust and legal channels exhausted, blocked or unavailable to the affected group.
- The breach must be open and non-violent, and the legal penalty must be accepted.
- Rawls adds that the society must be nearly just and its majority capable of being persuaded.

ANCHORS AND THE INDIAN LIMIT

- Thoreau, Civil Disobedience, 1849, is individual refusal rather than an organised mass campaign.
- Salt Satyagraha, 1930, is announced, non-violent and arrest-accepting; Ambedkar, 25 November 1949, names the grammar of anarchy.
- Articles 19(1)(a) and 19(1)(b) protect protest subject to reasonable restrictions; there is no right to break the law.

MECHANISM / VERDICT — Publicity, non-violence, exhaustion of legal channels and acceptance of the penalty operate as severe filters, so a defeasible obligation can be overridden in a particular case without dissolving legal order in general.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Civil disobedience is defined by two features ordinary law-breaking lacks, a public appeal to shared principles and acceptance of the legal penalty, and it is precisely that penalty-acceptance which demonstrates fidelity to law as such while one particular law is contested.

09

STAGE 09

THE ANSWER ENGINE: STAGED DEBATES, TRAP BANK AND THE GRADED VERDICT

DEFINE, LOCATE, RIVALS, OBJECT, EVIDENCE, VERDICT · STAGE ONE REAL DEBATE · ARISTOTLE AGAINST PLATO ON THE MIDDLE · INDIA EVIDENCE CITED BY POSITION · NEITHER ATOM NOR CELL · CONSTITUTIONAL, NOT PARLIAMENTARY, SUPREMACY

Define the stem's key term precisely → Locate the case on the relation spectrum → State the rivals and stage one real debate → Voice the objection to your own thesis → Close with a graded, specified verdict

THE SIX-MOVE ANSWER SPINE

- Define the stem's key term, then locate the case on the relation spectrum.
- State the rivals in play, then run one objection and reply on the strongest of them.
- Cite India-centric evidence by position, then deliver a graded verdict rather than a winner.

DEBATES WORTH STAGING

- Hobbes against Locke on resistance; Locke against Rousseau on the will.
- Liberal against communitarian on the self; liberal against idealist on freedom.
- Gandhi against Western anarchism; Aristotle against Plato on the statism and individualism axis.

TRAP BANK AND CLOSING VERDICT

- State is not government; Bentham is not anti-all-rights; Article 51A is not enforceable.
- India has constitutional supremacy, not parliamentary sovereignty; never fabricate a case, article, quotation or date.
- Close by specifying the justified balance of dignity, justice and order rather than asserting it.

MECHANISM / VERDICT — A twenty-marker is won in the fourth and fifth paragraphs, where a real debate is staged and the strongest criticism of one's own side is voiced before any verdict is offered.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The individual is neither an atom standing outside society nor a cell inside the state, so the examiner rewards a specified balance of dignity, justice and order that is argued through one staged debate and one honest concession rather than merely asserted.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · ADVANCED SESSION 1 — THE INDIVIDUAL-STATE FRAME · CONCEPTS AND WHY A STATE · ADVANCED SESSION 2 — RIGHTS I · WHAT A RIGHT IS AND ITS SOURCES · ADVANCED SESSION 3 — RIGHTS II · HOHFELD, WILL/INTEREST, HUMAN RIGHTS AND CORRELATIVITY · ADVANCED SESSION 4 — DUTIES

OPTIONAL SOURCE WITNESS

- ADVANCED SESSION 1 — The Individual-State Frame: Concepts and Why a State
- ADVANCED SESSION 2 — Rights I: What a Right Is and Its Sources
- ADVANCED SESSION 3 — Rights II: Hohfeld, Will/Interest, Human Rights and Correlativity
- ADVANCED SESSION 4 — Duties: Nature, Gandhi's Duty-Centrism and the Priority Debate

ADVANCED OBJECTION

- ADVANCED SESSION 5 — Accountability of Public Power
- ADVANCED SESSION 6 — Theories of the Relationship: Liberal, Idealist and Social Contract
- ADVANCED SESSION 7 — Radical and Situated Critiques: Anarchist, Marxist, Welfare, Communitarian, Feminist
- ADVANCED SESSION 8 — Political Obligation: Why Should the Individual Obey the State?

COMPARATIVE NUANCE

- ADVANCED SESSION 9 — Disobedience, Resistance and the Indian Constitutional Application
- ADVANCED SESSION 10 — Inter-Thinker Debates, Criticisms and Common Traps
- ADVANCED DOSSIER REFINEMENTS — USE SELECTIVELY
- Core prerequisite: Rights, duties and accountability

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels